

# PROFESSIONAL SOFTWARE DEVELOPMENT AND DIGITAL SERVICES MASTER AGREEMENT

Effective Date: January 1, 2026

This Professional Software Development and Digital Services Master Agreement ("Agreement") is entered into between Northstar Commerce Technologies Pvt. Ltd. ("Client") and Vertex Forge Studio ("Contractor"). The parties intend this Agreement to govern software engineering, digital product development, technical consulting, maintenance, and related professional services performed under one or more Statements of Work ("SOWs").

## RECITALS

*A. Client desires to engage Contractor for certain software engineering, architecture, integration, implementation, maintenance, security, and technical consulting services.*

*B. Contractor represents that it has personnel and technical resources capable of performing the Services described in applicable SOWs.*

*C. The parties wish to establish a reusable framework while allowing individual SOWs to define project-specific scope, milestones, fees, acceptance criteria, and deliverables.*

*D. The parties acknowledge that allocation of commercial and legal risk is material to pricing and performance decisions.*

NOW, THEREFORE, the parties agree as follows:

## 1. DEFINITIONS AND INTERPRETATION

1.1 "Services" means the professional software development, engineering, architecture, implementation, support, maintenance, technical consulting, testing, documentation, and related services expressly described in an executed SOW.

1.2 "Deliverables" means work product specifically identified as deliverable under an applicable SOW, including software code, technical documentation, designs, configuration files, test artifacts, deployment materials, and other project outputs.

1.3 "Background Technology" means pre-existing or independently developed software frameworks, libraries, reusable components, developer tools, templates, methods, know-how, algorithms, and technical concepts owned, controlled, or lawfully used by Contractor.

1.4 "Client Materials" means software, credentials, data, documentation, specifications, trademarks, systems, or other materials supplied or made available by Client.

1.5 "Confidential Information" means non-public information disclosed by either party that is marked confidential or that a reasonable person would understand to be confidential based on its nature and the circumstances of disclosure.

1.6 "Acceptance" means written approval of a Deliverable by Client's designated representative, or deemed acceptance under Section 6 when the applicable SOW provides for deemed acceptance.

1.7 "Change Order" means a written amendment to an SOW signed or otherwise approved by authorized representatives describing a change in scope, fees, assumptions, milestones, dependencies, or delivery dates.

1.8 A definition in this Section is descriptive only and does not itself create an obligation except where the text of a definition expressly states an operative right, restriction, license, assignment, or condition.

## 2. ORDER OF PRECEDENCE

2.1 In the event of conflict, the following order of precedence applies unless an SOW expressly states otherwise: (a) a mutually signed amendment to this Agreement; (b) the applicable SOW; (c) this Agreement; and (d) an administrative purchase order issued solely for procurement processing.

2.2 A purchase order, vendor portal term, invoice term, click-through condition, or unilateral procurement document shall not modify this Agreement or an SOW unless the parties expressly agree in writing to the modification.

2.3 Operational instructions may be issued through an approved project-management system only to the extent they remain within the scope, assumptions, budget, and technical acceptance criteria of the applicable SOW.

2.4 If an operational instruction would materially increase scope, change a material security requirement, alter acceptance criteria, extend delivery, or increase fees, the instruction shall be treated as a proposed Change Order.

### **3. SCOPE, SOWS, AND CHANGE CONTROL**

3.1 Each SOW shall identify, as applicable, the scope of Services, Deliverables, milestones, fees, assumptions, dependencies, acceptance criteria, estimated schedule, and designated contacts.

3.2 Contractor is responsible for performing the Services described in the applicable SOW using personnel with reasonable skill and care.

3.3 Client shall provide timely access to Client Materials, systems, personnel, decisions, credentials, and approvals reasonably required for Contractor to perform the Services.

3.4 Delays caused primarily by Client's failure to provide required inputs, access, decisions, approvals, or dependencies shall equitably extend affected delivery dates.

3.5 Neither party shall be required to perform material out-of-scope work without an approved Change Order.

3.6 A request that appears operational in form but materially expands obligations shall not become binding solely because Contractor begins preliminary analysis, unless Contractor expressly confirms the expanded work in writing.

3.7 If the parties cannot agree on a Change Order, Contractor may continue undisputed in-scope work while pausing only the disputed out-of-scope portion, provided the pause does not intentionally impair completed work.

### **4. TERM AND RENEWAL**

4.1 This Agreement begins on the Effective Date and continues for an initial term of twelve (12) months unless terminated earlier under this Agreement.

4.2 The Agreement automatically renews for successive one-year periods unless either party gives written non-renewal notice at least sixty (60) days before the then-current term ends.

4.3 An SOW may have a different project term and may survive expiration of the Agreement to the extent expressly stated in the SOW.

4.4 Expiration of this Agreement shall not eliminate accrued payment rights, accepted Deliverables, confidentiality obligations, intellectual property rights already granted, or other provisions intended to survive by their nature.

### **5. FEES, INVOICING, AND PAYMENT**

5.1 Fees and billing mechanics shall be stated in each SOW.

5.2 Unless an SOW states otherwise, undisputed invoices are due within forty-five (45) calendar days after receipt.

5.3 Client may withhold only the portion of an invoice that is subject to a good-faith, specifically identified dispute. The undisputed balance remains payable according to the applicable due date.

5.4 A payment dispute shall identify the disputed amount, the reason for dispute, and the relevant invoice or Deliverable within ten (10) business days after receipt, where reasonably practicable.

5.5 Client may not set off unrelated claims against undisputed amounts except with Contractor's written agreement or as otherwise finally determined by a court or arbitrator with jurisdiction.

5.6 Overdue undisputed amounts may accrue interest at one percent (1%) per month or the maximum lawful rate, whichever is lower.

5.7 Contractor may suspend affected Services for materially overdue undisputed invoices only after written notice and an additional ten (10) business day cure period.

5.8 Suspension shall not affect Client's ownership of Deliverables that have already been fully paid for, and Contractor shall make commercially reasonable efforts to protect Client data during a suspension.

5.9 Taxes imposed on Contractor's income, payroll, or personnel are Contractor's responsibility. Transactional taxes properly chargeable to Client shall be separately stated where required by law.

## **6. ACCEPTANCE AND QUALITY REVIEW**

6.1 Each SOW shall, where appropriate, specify objective acceptance criteria.

6.2 Client shall review a Deliverable within ten (10) business days after delivery unless the SOW specifies another period.

6.3 A rejection notice must identify material non-conformities with sufficient detail to permit reasonable remediation.

6.4 Contractor shall use reasonable efforts to correct valid non-conformities within a commercially reasonable period.

6.5 If Client does not provide a rejection notice within the applicable review period, the Deliverable shall be deemed accepted only when the SOW expressly provides for deemed acceptance.

6.6 Minor defects that do not materially impair the intended use of a Deliverable shall not justify rejection of the entire Deliverable.

6.7 Acceptance does not waive latent defects that could not reasonably have been identified during the ordinary review period, subject to the warranty limitations in Section 11.

## **7. INTELLECTUAL PROPERTY AND LICENSES**

7.1 Subject to full payment of the applicable SOW, Contractor assigns to Client the right, title, and interest in Deliverables specifically created for Client under that SOW, excluding Background Technology and third-party materials.

7.2 Notwithstanding Section 7.1, to the extent a Deliverable is incorporated into a production release, Client receives a non-exclusive, perpetual, worldwide license to use, reproduce, modify, host, and distribute that Deliverable as necessary for its internal business operations, but that license does not transfer ownership of unpaid or separately maintained components.

7.3 Contractor retains ownership of Background Technology. To the extent Background Technology is embedded in a paid-for Deliverable, Contractor grants Client a perpetual, worldwide, royalty-free license to use that Background Technology solely as necessary to operate the paid-for Deliverable.

7.4 Contractor shall not knowingly include third-party material subject to a license that materially restricts Client's intended commercial use without disclosure and, where reasonably practicable, Client approval.

7.5 Contractor may use generally applicable skills, ideas, methods, and know-how retained in unaided memory, provided Contractor does not disclose Client Confidential Information.

7.6 If an SOW expressly identifies client-owned repositories, tools, or infrastructure, the parties shall document access and transfer responsibilities separately.

## **8. CONFIDENTIALITY**

8.1 Each party shall use the other party's Confidential Information only for purposes of performing or receiving Services and shall protect it using commercially reasonable safeguards.

8.2 Confidential Information may be disclosed to employees, contractors, professional advisers, auditors, and service providers with a need to know, provided they are bound by obligations appropriate to the disclosure.

8.3 Confidentiality restrictions do not apply to information that the receiving party can demonstrate was independently developed without use of Confidential Information, lawfully known before disclosure, lawfully received from a third party without confidentiality duty, or becomes public through no breach.

8.4 If disclosure is legally required, the receiving party may disclose the minimum legally required information and, where legally permitted, provide prompt notice.

8.5 Except for trade secrets, confidentiality obligations continue for five (5) years after termination or expiration.

## **9. DATA PROTECTION AND SECURITY**

9.1 Contractor shall maintain commercially reasonable administrative, technical, and organizational safeguards appropriate to the nature of data processed in connection with the Services.

9.2 Contractor shall notify Client without unreasonable delay after confirming a security incident materially affecting Client Confidential Information.

9.3 The parties shall cooperate reasonably on containment, investigation, remediation, and evidence preservation.

9.4 Contractor shall not be responsible for an incident caused solely by vulnerabilities, credentials, configurations, or infrastructure controlled by Client or an unrelated provider, except to the extent Contractor materially contributed through failure to comply with an express contractual security requirement.

9.5 Client shall provide accurate credentials, access, configuration information, and reasonable cooperation needed to perform security-related work.

9.6 Contractor shall retain project-related operational logs for up to twelve (12) months after the applicable SOW ends unless a longer period is required by law or expressly required by the SOW.

9.7 Neither party shall intentionally introduce malicious code, unauthorized access mechanisms, or hidden credentials into systems provided to the other.

## **10. SERVICE LEVELS, SUPPORT, AND MAINTENANCE**

10.1 Support scope, severity definitions, response objectives, maintenance windows, and escalation paths shall be stated in the applicable SOW or support schedule.

10.2 Unless an SOW states otherwise, response objectives are service targets and do not constitute guarantees of a particular resolution time.

10.3 Contractor shall use commercially reasonable efforts to remediate reproducible defects reported with sufficient information.

10.4 Contractor is not required to provide unlimited free maintenance for new functionality, architectural redesign, third-party outages, or defects caused by Client modifications.

10.5 Emergency support outside agreed support hours may be billed at the applicable emergency rate identified in the SOW.

10.6 A failure to meet a service target does not by itself create a material breach unless the applicable SOW expressly states that the target is a binding service level with an agreed remedy.

## **11. WARRANTIES**

11.1 Contractor warrants that Services will be performed in a professional and workmanlike manner consistent with generally accepted industry practice.

11.2 Contractor warrants that, for thirty (30) days after acceptance, Deliverables will substantially conform to the applicable SOW.

11.3 Except for express warranties stated in this Agreement, the Services and Deliverables are provided "as is" to the maximum extent permitted by law, and implied warranties are disclaimed where permitted.

11.4 The warranties do not cover defects caused by unauthorized modification, misuse, unsupported environments, third-party services outside Contractor's control, or use contrary to documented requirements.

11.5 The remedies for a valid warranty claim are limited to correction, re-performance, or, if the parties agree that correction is commercially impracticable, a reasonable refund of the affected fees.

## **12. INDEMNIFICATION**

12.1 Contractor shall defend and indemnify Client against third-party claims alleging that a Deliverable, as delivered by Contractor and used in accordance with the Agreement, infringes a third party's intellectual property rights.

12.2 Contractor shall also indemnify Client against third-party claims for bodily injury, death, or property damage to the extent caused by Contractor's negligent acts or omissions.

12.3 These obligations do not apply to claims arising from Client Materials, Client modifications, combinations with products not supplied by Contractor, or continued use after commercially reasonable notice of an infringement concern and a non-infringing alternative.

12.4 Client shall give prompt notice of an indemnified claim and reasonable cooperation. Failure to provide prompt notice does not relieve Contractor except to the extent Contractor is materially prejudiced.

12.5 Contractor may control the defense, but may not settle a claim in a manner that admits fault by Client or imposes material non-monetary obligations on Client without Client's written consent.

12.6 The indemnity obligations in this Section are subject to the liability limitations in Section 13 except where Section 13 expressly provides otherwise.

## **13. LIMITATION OF LIABILITY**

13.1 Neither party shall be liable to the other for indirect, incidental, special, exemplary, punitive, or consequential damages, including lost profits or loss of anticipated savings, to the maximum extent permitted by law.

13.2 Except for liabilities expressly excluded under Section 13.3, each party's aggregate liability arising from an SOW shall not exceed the total fees paid or payable under that SOW during the twelve (12) months preceding the event giving rise to the claim.

13.3 The cap does not apply to: (a) fraud or willful misconduct; (b) a party's intentional misuse of the other party's Confidential Information; (c) amounts expressly payable under an indemnity that the parties agree in an SOW is outside the cap; or (d) liabilities that cannot legally be limited.

13.4 The parties acknowledge that the exclusions and cap are material commercial terms considered in pricing.

## **14. INSURANCE**

14.1 During the Term, Contractor shall maintain commercially reasonable insurance appropriate to the Services.

14.2 Upon reasonable request, Contractor shall provide certificates of insurance evidencing required coverage.

14.3 Client may require additional project-specific coverage only when the applicable SOW identifies the requirement and Client reimburses any incremental premium reasonably attributable to that requirement.

14.4 Failure to maintain required insurance after written notice and a reasonable cure period constitutes a material breach.

## **15. TERMINATION**

15.1 Either party may terminate this Agreement or an affected SOW for material breach if the breaching party fails to cure the breach within thirty (30) days after written notice.

15.2 Client may terminate an SOW for convenience upon fifteen (15) days' written notice.

15.3 Upon a convenience termination by Client, Client shall pay undisputed fees for Services properly performed through the effective termination date and approved, non-cancellable third-party commitments incurred specifically for the terminated SOW.

15.4 If Contractor terminates due to Client's prolonged non-payment of undisputed invoices, Contractor shall first provide written notice and an additional ten (10) business day cure period.

15.5 A party may terminate immediately for insolvency, cessation of business, or a material security incident that creates a documented and substantial risk to the other party's systems or data, subject to applicable law.

15.6 Termination does not affect accrued payment rights, confidentiality obligations, intellectual property rights already granted, dispute-resolution provisions, or provisions intended by their nature to survive.

## **16. NON-SOLICITATION AND PERSONNEL**

16.1 During the Term and for twelve (12) months thereafter, neither party shall knowingly solicit for employment an employee of the other party who was materially involved in the Services, except through general advertisements not specifically directed at that employee.

16.2 A general recruiting campaign, public job advertisement, or unsolicited application shall not by itself constitute prohibited solicitation.

16.3 This Section does not prohibit hiring where the individual approaches the hiring party without targeted solicitation, subject to applicable law.

## **17. DISPUTE RESOLUTION AND GOVERNING LAW**

17.1 The parties shall first attempt in good faith to resolve disputes through project-level discussion and, if necessary, executive escalation.

17.2 If unresolved within thirty (30) days, disputes shall be submitted to confidential arbitration before a single arbitrator in Mumbai, Maharashtra, in English, unless the parties agree otherwise in writing.

17.3 Each party shall initially bear its own legal fees and the arbitration fees shall be shared equally, subject to the arbitrator's authority to reallocate fees where permitted by applicable law.

17.4 Either party may seek temporary injunctive relief where necessary to prevent misuse of Confidential Information or unauthorized use of intellectual property.

17.5 This Agreement shall be governed by the laws applicable in the State of Maharashtra without regard to conflict-of-law principles requiring another jurisdiction's law.

## **18. AUDIT AND RECORDS**

18.1 Upon reasonable written notice, Client may audit records reasonably necessary to verify invoiced time, reimbursable expenses, specified security obligations, and usage-based charges under an SOW.

18.2 Audits shall occur no more than once per calendar year unless a material discrepancy is identified.

18.3 Audits shall be conducted during normal business hours and in a manner that minimizes unreasonable disruption to Contractor operations.

18.4 Client shall not access unrelated client data, source code belonging to other customers, or privileged legal advice during an audit.

18.5 Contractor shall retain relevant billing and compliance records for twenty-four (24) months after the applicable SOW ends unless a longer period is required by law.

## **19. SUBCONTRACTING AND ASSIGNMENT**

19.1 Contractor may use qualified subcontractors to perform portions of the Services, provided Contractor remains responsible for their acts and omissions and ensures appropriate confidentiality and security commitments.

19.2 Contractor shall obtain Client's prior written approval before subcontracting a material portion of a project to a provider that will access Client Confidential Information, such approval not to be unreasonably withheld or delayed.

19.3 Client may assign this Agreement to an affiliate or in connection with a merger, acquisition, reorganization, or sale of substantially all relevant assets.

19.4 Contractor may not assign this Agreement without Client's prior written consent, except to a successor entity in a bona fide merger or sale of substantially all of Contractor's business assets.

## **20. FORCE MAJEURE**

20.1 Neither party shall be liable for delay caused by events beyond its reasonable control, including natural disasters, war, civil unrest, labor disruptions, governmental restrictions, widespread telecommunications failures, and material cloud-service outages not caused by the affected party.

20.2 The affected party shall use commercially reasonable efforts to mitigate the impact and resume performance.

20.3 Force majeure does not excuse payment obligations for Services already properly performed and invoiced before the event.

20.4 If a force majeure event continues for more than sixty (60) consecutive days and materially prevents performance of an affected SOW, either party may terminate the affected portion upon written notice.

## **21. NOTICES AND ELECTRONIC COMMUNICATIONS**

21.1 Formal notices under this Agreement shall be in writing and delivered by recognized courier, registered mail, or email to notice addresses designated in the applicable SOW.

21.2 Email notice is effective when the sender receives a non-automated delivery confirmation, provided that if sent outside normal business hours it is deemed received on the next business day.

21.3 Project-management messages, chat messages, and routine status updates are not formal legal notices unless the SOW expressly states otherwise.

## **22. GENERAL PROVISIONS**

22.1 This Agreement and its SOWs constitute the entire agreement concerning their subject matter and supersede prior discussions relating to that subject matter.

22.2 No amendment is effective unless in writing and signed or otherwise expressly approved by authorized representatives of both parties, except that operational instructions may be issued under Section 3 within existing scope.

22.3 If any provision is held unenforceable, the remaining provisions remain in effect and the affected provision shall be modified only to the minimum extent necessary to make it enforceable.

22.4 A waiver of one breach does not constitute a waiver of any later breach.

22.5 Headings are for convenience and do not alter interpretation.

22.6 No third party has rights under this Agreement except as expressly provided for indemnified persons under Section 12.

## **23. PUBLICITY, BENCHMARKING, AND DATA USE**

23.1 Neither party may use the other party's name, logo, or trademarks in public marketing materials without prior written consent, except for ordinary confidential vendor lists.

23.2 Contractor may use anonymized and aggregated engineering metrics for internal service improvement provided the resulting information does not identify Client, a customer, a person, or Confidential Information.

23.3 Contractor shall not use Client source code, production data, credentials, or Confidential Information to train a general-purpose model or disclose such material to an external AI service unless the applicable SOW or written security approval expressly permits the use.

23.4 If third-party AI-assisted development tools are approved for an SOW, Contractor remains responsible for compliance with the applicable security and confidentiality requirements.

## **24. COMPLIANCE AND ETHICAL CONDUCT**

24.1 Each party shall comply with laws applicable to its performance under the Agreement.

24.2 Neither party shall knowingly offer or accept an unlawful payment, bribe, kickback, or improper advantage in connection with the Services.

24.3 Contractor shall promptly disclose any material conflict of interest that would reasonably affect performance.

24.4 Client shall not require Contractor to implement a feature or process that Contractor reasonably believes would violate applicable law, contractual confidentiality obligations owed to another party, or clearly documented security controls.

## 25. TRANSITION ASSISTANCE

25.1 Upon expiration or termination of an SOW, Contractor shall provide a commercially reasonable transition package consisting of source repositories, build instructions, deployment notes, architecture diagrams, environment documentation, and credential-transfer procedures applicable to paid-for Deliverables.

25.2 Transition assistance requested beyond the ordinary package shall be billed at agreed professional-service rates unless the SOW states otherwise.

25.3 If Client initiates a convenience termination while an active milestone is less than fifty percent (50%) complete, Contractor remains entitled to payment for completed work, demonstrable work in progress, and non-cancellable project commitments incurred specifically for the terminated SOW.

25.4 If Contractor terminates due to prolonged non-payment of undisputed invoices, Client shall have ten (10) business days after paying undisputed overdue amounts to receive a commercially reasonable transition package.

25.5 The parties' obligations concerning ownership, confidentiality, indemnification, limitation of liability, dispute resolution, records, accrued payment rights, and transition assistance survive to the extent necessary to give them effect.

## 26. SIGNATURES

CLIENT:

Northstar Commerce Technologies Pvt. Ltd.

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

CONTRACTOR:

Vertex Forge Studio

By: \_\_\_\_\_

Name: \_\_\_\_\_

Title: \_\_\_\_\_

Date: \_\_\_\_\_

END OF AGREEMENT